Supreme Court, U.S.
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CASE NO. 98-1993
IN THE UNITED STATES SUPREME COURT
October Term 1999

THE STATE OF FLORIDA,
Petitioner,

vs.

J.L., a juvenile,
Respondent.

ON WRIT OF CERTIORARI TO THE
SUPREME COURT OF FLORIDA

PETITIONER'S REPLY BRIEF ON THE MERITS

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ARGUMENT

AN ANONYMOUS TIP WHICH STATES THAT A PERSON IS CARRYING A CONCEALED FIREARM AT A SPECIFIC LOCATION, WITH A DETAILED DESCRIPTION OF THE PERSON AND HIS ATTIRE, IS SUFFICIENTLY RELIABLE TO JUSTIFY AN INVESTIGATORY DETENTION AND FRISK WHERE THE POLICE IMMEDIATELY VERIFY THE ACCURACY OF THE TIP.

A. A *Terry* stop and frisk is justified by the totality of the circumstances, where an anonymous tip relates both innocent facts, verified immediately, and the carrying of a concealed firearm.

Florida's position, as clearly stated in its initial brief, is that the Fourth Amendment does not totally proscribe a *Terry*[1] stop and frisk based on an anonymous tip that an individual is carrying a concealed firearm where only the innocent details of the tip are immediately verified. Such a stop and frisk is lawful if, based on the totality of the circumstances, reasonable articulable suspicion exists that the individual is carrying a concealed firearm. The existence of reasonable suspicion is established based on the quantity and quality of the verified innocent details, including the age of the individual who is alleged to be carrying a concealed firearm.

The Respondent, in its answer brief, totally misconstrues Florida's position. According to Respondent, Florida's position is that whenever an anonymous innocent details tip states that a firearm is involved, reasonable suspicion always exists to support a *Terry* stop and frisk. After erecting the strawman "firearm exception" position,

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[1] *Terry v. Ohio*, 392 U.S. 1, 88 S.Ct. 1868, 20 L.Ed.2d 889 (1968).

Respondent then advocates for a bright line rule that reasonable suspicion can never be established by an anonymous tip that an individual is carrying a concealed firearm where only the innocent details are verified.

Florida's position is in accord with the Court's Fourth Amendment jurisprudence that holds that bright line rules are antithetical to the concept of reasonable suspicion. *See Illinois v. Wardlow*, 120 S.Ct. 673 (2000). In *Wardlow*, Illinois asked the Court to announce a bright line rule authorizing the temporary detention of anyone who flees at the mere sight of a police officer. Wardlow, on the other hand, asked the Court to adopt the opposite per se rule that the fact that an individual flees upon seeing the police can never, by itself, be sufficient to justify a *Terry* stop. The Court rejected both positions and held the flight from a police officer is just one circumstance in the totality of circumstances that determines the existence of reasonable suspicion. The Court then held that neither presence in a high crime area standing alone and nor flight from a police officer standing alone establishes reasonable suspicion. However when these two circumstances are present at the same time reasonable suspicion is established.

Florida urges that reasonable suspicion is established based on the quantity and quality of the verified innocent details of an anonymous tip that an individual is carrying a concealed firearm. Therefore, the Court should quash the Supreme Court of Florida's holding that such a tip can never provide the necessary reasonable suspicion to justify a *Terry* stop as a misapprehension of the law.

B. The anonymous tip was sufficiently reliable to justify the investigatory detention and frisk.

The totality of the circumstances herein establishes the requisite reasonable suspicion. The anonymous tip stated that three black youths were standing at a bus stop in front of a pawn shop. The three youths were described with particularity. Within six minutes of receiving the tip, Officer Anderson verified the tip's innocent details. After the innocent details of the anonymous tip were verified, Officer

Anderson's commonsense judgments and inferences about human behavior established reasonable suspicion. *See Illinois v Wardlow*, 120 S.Ct. 673, 676 (2000).

The instant situation is exactly what the Court envisioned in *United States v. Cortez*, 449 U.S. 411, 101 S.Ct. 690, 66 L.Ed.2d 621 (1981). After discovering sets of distinctive human footprints in the desert, Border Patrol officers deduced that on a number of occasions groups of from 8 to 20 persons had been guided by a person, whom they designated "Chevron," from Mexico across an area of desert in Arizona, known to be heavily trafficked by aliens illegally entering the country. These groups of aliens proceeded to an isolated point on a road to be picked up by a vehicle; the officers deduced the vehicle probably approached from the east and returned to the east after the pickup. They also surmised, based on the times when the distinctive tracks were discovered, that "Chevron" generally traveled on clear nights during or near weekends, and arrived at the pickup point between 2 a. m. and 6 a. m. On the basis of this information, the officers stationed themselves at a point east of the probable pickup point on a night when they believed there was a strong possibility that "Chevron" would be smuggling aliens. The officers observed a pickup truck with a camper shell suitable for carrying sizable groups pass them heading west and then observed the same vehicle return within the estimated time for making a round trip to the pickup point. The officers stopped the vehicle, which was being driven by respondent Cortez and in which respondent Hernandez-Loera, who was wearing shoes with soles matching the distinctive "chevron" shoeprint, was a passenger. Cortez voluntarily opened the door of the camper and the officers then discovered illegal aliens. The Court in finding that reasonable suspicion existed discussed the principles underlying the determination.

> It implicates all of the principles just discussed--especially the imperative of recognizing that, when used by trained law enforcement officers, objective facts, meaningless to the untrained, can be combined with permissible deductions from such facts to form a legitimate basis for suspicion of a particular person and for action on that suspicion. We see here the kind

> of police work often suggested by judges and scholars as examples of appropriate and reasonable means of law enforcement. Here, fact on fact and clue on clue afforded a basis for the deductions and inferences that brought the officer to focus on "Chevron."

Id. at 419, 101 S.Ct. at 695-969.

Common sense judgment established that the individuals described by the tip as youths were, in fact, juveniles. In this situation the term youths means the time of life between childhood and maturity.[2] Therefore, upon Officer Anderson's arrival on the scene, her observation verified that the youths were juveniles.

Once Officer Anderson verified that the individuals were juveniles, the inference was established that in Florida it was more likely than not that the juvenile possessed a firearm. The Florida Legislature, when it enacted strict and harsh legislation regulating juveniles and their possession and use of firearms in Fla. Stat. Ch. 790.22 (1994 Supp.), acknowledged this fact in the legislative intent.[3]

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[2] "Youths" means: "4. the period of life from puberty to the attainment of full growth; adolescence." Random House Unabridged Dictionary; 2205 (1993 Ed.).

[3] 1993 Fla. Laws Ch. 416 states:

WHEREAS, the love affair between juveniles and firearms has reached an all-time high here in Florida, and

WHEREAS, the courts, the Legislature, and law enforcement cannot be the sole solution to stem our rising juvenile crime statistics, and

WHEREAS, it is the will of the Legislature and all Floridians that parental involvement, accountability, and responsibility become key to solving our existing broken criminal justice system, and

WHEREAS, it is the will of Floridians all across this great state of ours that juveniles who violate laws pertaining to the illegal use of firearms be dealt with in a swift and certain manner, and

WHEREAS, it is time for the Governor, the President of the Senate, and the Speaker of the House of Representatives, along with the republican leaders of the Senate and House of Representatives, to seek relief from our

Since empirical studies dealing with how many Florida juveniles carry concealed firearms do not exist, they can not be utilized in determining the propriety of Officer Anderson's conduct. Rather based on the facts and the inferences drawn therefrom, the propriety of Officer Anderson's conduct and thus the determination of reasonable suspicion herein must be based on commonsense judgments about human behavior. Officer Anderson's determination that reasonable suspicion existed to stop and frisk Respondent requires the Court's approval, since after she verified that the particularly described youths were at the particularly described location, she utilized her commonsense judgment that in Florida it was more likely than not that the Respondent was carrying a concealed firearm in effectuating the stop. Officer Anderson's use of commonsense judgment in ferreting out crime has an important place in the reasonable suspicion equation. Thus, its consideration herein, along with the objective facts as established by the innocent detail tip, establishes the necessary reasonable suspicion to support the instant stop and frisk.

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counterparts in the United States Congress by cutting the federally mandated ties that bind us from curing our juvenile crime problems here at home, as said laws prevent us from using stricter, harsher, and more certain penalties in detaining Florida's juveniles,...

CONCLUSION

Based on the foregoing reasons, the decision of the Supreme Court of Florida should be reversed and the cause remanded to the Florida courts for further proceedings.

Respectfully submitted,

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